



CHAPTER 1.

An Act for incorporating and conferring powers on the Brixham Gas Company. A.D. 1904.
[24th June 1904.]

WHEREAS in the year one thousand eight hundred and thirty-eight certain persons formed themselves into a company under the name of the Brixham Gas Light Company (in this Act referred to as "the existing company") for the purpose amongst other things of supplying and lighting the town of Brixham and its vicinity in the county of Devon with gas:

And whereas the sums expended by the existing company for capital purposes exceed in the aggregate six thousand pounds and the existing company have not borrowed any money on mortgage of their undertaking:

And whereas the demand for gas in the urban district of Brixham and in the neighbourhood thereof has increased and is increasing and it is expedient that the works and mains of the existing company be extended and improved and that additional capital be raised for such extension and improvement:

And whereas it is expedient that the existing company be dissolved and re-incorporated with further powers:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

A.D. 1904. and Commons in this present Parliament assembled and by the
— authority of the same as follows (that is to say):—

PRELIMINARY.

Short title.

1. This Act may be cited as the Brixham Gas Act 1904.

Incorporation of Acts.

2.—(1) The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely):—

(A) The Companies Clauses Acts 1845 to 1889 (except the provisions with respect to the conversion of borrowed money into capital and except Part IV. of the Companies Clauses Act 1863):

(B) The Gasworks Clauses Act 1847 (except sections 30 to 34) Provided that section 13 of that Act shall be read as if the words “or any premises” were inserted after the words “private building” and that section 35 of that Act shall be read as if the words from “in case the whole” to “have been paid” were omitted therefrom and as if the expression “the prescribed rate” included the rate of dividend authorised by this Act or such rate as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the insurance fund:

(c) The Gasworks Clauses Act 1871.

(2) The provisions of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 incorporated with this Act shall apply as well to the pipes and works of the Company laid down or constructed before the passing of this Act as to any pipes or works which may be laid down or constructed under the authority of this Act.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

The expression “the Company” shall mean the Company incorporated by this Act;

The expressions “the works” “the gasworks” and “the undertaking” shall respectively mean and include the

gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvement thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively ;

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The expression "the council" shall mean the Brixham Urban District Council.

4. The limits of this Act shall be the urban district of Brixham in the county of Devon.

Limits of Act.

INCORPORATION OF COMPANY.

5. From and after the passing of this Act the existing company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes herein-after mentioned and shall be and are hereby incorporated by the name of the Brixham Gas Company and by that name shall be a body corporate with perpetual succession and a common seal with power to purchase take hold and dispose of lands and other property for the purposes of this Act or of their undertaking.

Incorporation of Company.

6. The Company shall be established for the purposes of acquiring maintaining altering improving extending and enlarging the gasworks of the existing company and of manufacturing and supplying gas for lighting heating motive power and other purposes within the limits of this Act and the Company may provide produce sell dispose of and deal in gas coke tar and all other residual products resulting from the manufacture of gas and generally may carry on the business usually carried on by a gas company.

General purposes of Company.

7. Subject to the provisions of this Act all the lands gasworks erections buildings interests rights and easements and other the undertaking which immediately before the passing of this Act were vested in the existing company or any person in trust for them or to which the existing company were in anywise entitled and all mains and pipes plant plugs lamps retorts gauges meters lamp-

Present property of existing company vested in Company.

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posts syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act or which immediately before the passing of this Act were the property of the existing company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the existing company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the existing company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the existing company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Deed of settlement of existing company to be void.

8. Subject to the provisions of this Act the deed of settlement constituting the existing company dated the sixth day of May one thousand eight hundred and thirty-eight shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the existing company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said deed of settlement incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the existing company if this Act had not been passed.

Nothing to affect previous rights and liabilities.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the existing company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said deed of settlement had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said deed of settlement were not avoided by this

Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the existing company and the members thereof as such and the property of the existing company (as the case may be) and the generality of this enactment shall not be restricted by any of the other provisions of this Act.

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10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the existing company or any trustees or persons acting on behalf of the existing company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the existing company or the trustees or persons acting on behalf of the existing company the Company had been a party thereto.

Contracts
prior to Act
to be binding.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the existing company or any member thereof in relation to the affairs of the existing company or to which the existing company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the existing company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the existing company and its members respectively.

Actions &c.
not to abate.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the existing company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the existing company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may

Trustees of
existing com-
pany to be
indemnified.

A.D. 1904. — sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Company to satisfy liabilities of existing company.

13. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the existing company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the existing company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of gas rents &c.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the existing company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

As to payment of debts owing before passing of Act.

15. All persons who immediately before the passing of this Act owed any money to the existing company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the existing company or for the payment of which the existing company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

Certificates &c. to remain in force.

16. Notwithstanding the avoidance of the said deed of settlement all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed for or with respect to any shares in the existing company shall remain in full force and continue and be available in all respects as if they had not been avoided.

Books &c. continued evidence.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Officers to continue until removed.

18. All officers and servants of the existing company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and

penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

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CAPITAL.

19. The capital of the Company shall be twenty thousand pounds whereof six thousand pounds is in this Act called "the original capital" and fourteen thousand pounds is in this Act called "the additional capital" and shall be raised in manner herein-after mentioned and the original capital shall be divided into six hundred shares of ten pounds each and the Company may convert into stock the whole or any part of their original or additional capital when fully paid up. Capital.

20. The shares in the original capital shall be divided among and vested in the several persons who immediately before the passing of this Act were the members of the existing company in the proportions in which they are interested in that company and every share so vested shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as immediately before the passing of this Act affected the interest in the existing company for which the same is substituted. Vesting of shares in members of existing company.

21. The Company may from time to time raise additional capital not exceeding in the whole fourteen thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that— Power to raise additional capital.

(1) The Company shall not create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of fourteen thousand pounds:

(2) The Company shall not raise by the issue of preference shares or stock a greater amount of such additional capital than ten thousand pounds.

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New shares
or stock to
be offered by
auction or
tender.

22. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act and forming part of the additional capital are or is to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale—

- (1) No single lot shall comprise more than one hundred pounds nominal value of shares or stock :
- (2) The reserved price put upon such shares or stock shall not be less than the nominal amount thereof :
- (3) Notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner :
- (4) No priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any such holder be the same in amount as any bid or offer made by any other person the bid or offer of such holder may be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of shares or stock in the Company.

Purchase
money of
capital sold
to be paid
within three
months.

23. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be
given as to
sale of shares
or stock.

24. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk to the council and to the secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders (as the case may be) and notice of such intention shall be duly advertised once in each of

two consecutive weeks in one or more local newspapers circulating within the said limits. A.D. 1904.

25.—(1) When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of preference or ordinary shares or stock of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others.

Shares or stock not sold by auction or by tender to be offered to shareholders employees or consumers.

(2) Any shares or stock not so disposed of or so offered and not accepted in the case of shares or stock offered to the holders of shares or stock within the time prescribed by the said Act or in the case of shares or stock offered to such employees or consumers within the time limited by the directors of the Company may again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of preference or ordinary shares or stock or to such employees or consumers at not less than the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold.

26.—(1) The Company may at any time after the passing of this Act borrow on mortgage of the undertaking in respect of the original capital any sum or sums not exceeding in the whole two thousand pounds.

Power to borrow.

(2) In addition to the money which the Company are authorised to borrow under the foregoing provision of this section they may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock forming part of the additional capital at the time issued together with the premium (if any) realised on the sale thereof shall have been

A.D. 1904. fully paid up and the Company have proved to the justice who is to certify under section 40 of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

(3) No higher rate of interest than five per centum per annum shall be paid by the Company in respect of money borrowed by them in pursuance of this section.

(4) Any sums which shall be received upon the issue of shares or stock by way of premium shall be deemed to be part of the additional capital of the Company for the purposes of this section.

For appointment of a receiver.

27.—(1) The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver.

(2) In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole.

Debenture stock.

28.—(1) The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages.

(2) The provisions of this Act with respect to disposing of shares or stock by auction or tender and to the application of any money arising by way of premium shall *mutatis mutandis* apply to debenture stock created and issued under this section.

(3) Notice of the effect of subsection (1) of this section shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages and debenture stock.

29. All money to be raised by the Company on mortgage under the provisions of this Act shall have priority against the

Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

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ture stock
over other
debts.

30. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

Application
of moneys.

LIMITATION OF PROFITS.

31.—(1) The profits of the Company to be divided among the holders of such of the additional capital to be raised under the powers of this Act as shall be issued as preference capital shall not in any year exceed the rate of six pounds in respect of every one hundred pounds actually paid up of such capital.

Profits of
Company
limited.

(2) Except as by this Act provided the profits of the Company to be divided among the holders of ordinary capital shall not in any year exceed the following rates (which are in this Act referred to as "the standard rates of dividend") (that is to say):—

On the original capital the rate of ten pounds in respect of every one hundred pounds of such capital;

On such of the additional capital to be raised under the powers of this Act as shall be issued as ordinary capital the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital.

32. In case in any half-year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the authorised rate on each class of ordinary shares or stock in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

Dividends
on different
classes of
ordinary
capital to be
paid propor-
tionately.

33.—(1) The directors of the Company may if they think fit annually appropriate out of the revenue of the Company and as

Renewal
fund.

A.D. 1904. — part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum on the paid-up capital of the Company including premiums to be called "the renewal fund." for the purpose of providing for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes.

(2) Such fund shall be invested in any securities in which trustees are for the time being authorised by law to invest trust money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to ten per centum on the paid-up capital for the time being of the Company.

(3) When and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend.

(4) If such fund be at any time reduced below the said sum it may thereafter be made up in manner herein-before provided to that sum and so from time to time as often as such reduction shall happen.

(5) Resort may from time to time be had to such fund for the purposes aforesaid although the same may not have reached or may have been reduced below the full amount of ten per centum upon the capital of the Company as aforesaid.

Insurance
fund.

34. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital the excess beyond the sum necessary for that purpose may to the extent of one per centum per annum upon the paid-up capital of the Company be invested in securities in which trustees are for the time being authorised by law to invest trust money and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accidents strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again

made up to the said sum and so from time to time as often as such reduction shall happen Provided that-- A.D. 1904.

- (1) When and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend:
- (2) Resort may be had to the insurance fund to meet any extraordinary claim or demand as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid:
- (3) Any sums which shall be received upon the issue of shares or stock by way of premium shall be deemed to be part of the paid-up capital of the Company for the purposes of this section.

35. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the authorised rates on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of the undertaking for the next following year. Application of excess of profits over authorised dividend.

36. When in any year the dividend on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of this Act may be invested in securities in which trustees are for the time being authorised by law to invest trust money and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rates on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund. Reserve fund.

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MEETINGS DIRECTORS &C.

Ordinary
meetings.

37. The first ordinary meeting of the Company shall be held within nine months after the passing of this Act and the subsequent ordinary meetings of the Company shall be held once in every year in the month of February or March or at such other time as shall be appointed for that purpose by an order of a general meeting.

Number of
directors.

38. The number of directors shall be three but the Company may vary the number provided that the number be not at any time more than five or less than three.

Qualification
of directors.

39.—(1) The qualification of a director shall be the possession in his own right of not less than three hundred pounds in the ordinary capital of the Company.

(2) No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any such contract.

(3) If any of the directors shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for three months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant.

(4) The continuing directors may act notwithstanding any vacancy in the number of directors.

Quorum.

40. The quorum of a meeting of directors shall be two. Provided that when the number of directors exceeds three the quorum shall be three.

First direc-
tors.

41. Charles Comins William Albert Schultz and Henry Claude Walker shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act.

Election of
directors.

42. At the first ordinary meeting held after the passing of this Act the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply

the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of directors then retiring from office agreeably to the provisions of the Companies Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act. A.D. 1904.

43. The quorum of all general meetings whether ordinary or extraordinary shall be five shareholders present in person or by proxy holding not less in the aggregate than one thousand pounds in the ordinary capital of the Company. Quorum for meetings of Company.

44. At all general meetings of the Company every shareholder shall have one vote for every share held by him Provided that unless otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any preference shares or stock. Scale of voting.

45.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting Provided that if the Company think fit a firm of chartered accountants may be appointed auditors. Number and qualification of auditors.

(2) The auditors appointed by the Company shall be chartered accountants and shall not hold any shares in the capital of the Company.

46. The directors may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any half-year one-half of the amount of the authorised dividend. Interim dividend.

47. The directors may close the register of transfers for a period not exceeding fourteen days previous to a declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and Closing of transfer books previous to declaring interim dividend.

A.D. 1904. — any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Books to be
balanced to
31st December.

48. The period to which the books of the Company shall be balanced shall be the thirty-first day of December in each year.

Receipt in
case of per-
sons non sui
juris.

49. If any money is payable to a shareholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

WORKS AND LANDS.

Powers as to
construction
and mainte-
nance of gas-
works &c.

50. Subject to the provisions of this Act the Company may maintain alter improve enlarge extend and renew or discontinue the existing gasworks upon the lands described in the schedule to this Act and may also upon those lands erect lay down provide maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

Power to
lay pipes in
streets not
dedicated to
public use.

51. The Company may upon the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down and repair take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
utilise pipes
for ancillary
purposes.

52. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of this Act for the purpose of procuring conducting or disposing of any oil or other

materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

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53. The Company may for the purposes of their undertaking purchase take on lease and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole two acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

Power to purchase lands by agreement. Gas not to be manufactured except on lands scheduled.

54. The Company may sell or lease any lands vested in or acquired by them under the powers of this Act and not for the time being required for the purposes thereof.

Sale or lease of lands not required.

SUPPLY OF GAS.

55. The standard price to be charged by the Company for gas supplied by them shall be four shillings per thousand cubic feet. Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary share capital or stock as follows :--

Dividend dependent on price charged.

- (1) In respect of any half-year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a ten per centum per annum standard rate of dividend and by one shilling and ninepence on every one hundred pounds of such capital with a seven per centum per annum standard rate of

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dividend and so in proportion for any fraction of one hundred pounds :

- (2) And in respect of any half-year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a ten per centum per annum standard rate of dividend and by one shilling and ninepence on every one hundred pounds of such capital with a seven per centum per annum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

Pressure of
gas.

56.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six-tenths of an inch and from sunset to midnight not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours previous notice shall be given to the Company of the time and place at which such testing shall be conducted.

Quality of gas.

57. The prescribed number of candles shall be fourteen.

Testing
place.

58. Within six months from the passing of this Act the Company shall provide a testing place at their works.

Burner.

59.—(1) The prescribed burner shall be Sugg's London Argand Burner No. 1 with a six-inch by one-and-three-quarter-inch glass chimney but if at any time and so long as the gas flame rises above the top of that glass a six-inch by two-inch chimney shall be used.

(2) Provided that on the application of the Company the Board of Trade may approve any other burner and the burner for the time being approved by the said Board in pursuance of

this subsection shall be the prescribed burner in lieu of the burner named in subsection (1) of this section. A.D. 1904.

60. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

As to construction and placing of pipes &c. between mains and meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper circulating in the limits of this Act and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the

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court may after hearing the parties and considering any question as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to supply gas fittings &c. for heating motive and other purposes and fittings not to be subject to distress.

61.—(1) The Company may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges dynamos motors pipes and other fittings for lighting for motive power for the warming and ventilation of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Anti-fluctuators for gas engines.

62. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Company may cease to supply him with gas. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Company to pay interest on money deposited as security for gas meters.

63. If any person is required by the Company to give to them security for the payment of the price or rent of a meter the Company shall pay interest at the rate of four per centum per annum on every sum of ten shillings deposited by way of such

security for every six months during which the same remains in their hands. A D. 1904.

64.—(1) Twenty-four hours notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur.

Gas consumers to give notice to Company before removing.

(2) Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

65. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Company.

Notice of discontinuance.

66. If a person requiring a supply of gas for any premises occupies or has occupied other premises at which gas was supplied to him by the Company and has not paid all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse to supply persons in debt for other premises.

67.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

Period of error in defective meters.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

68. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognisance of the case are of opinion that such neglect refusal insufficiency defect or excess

No penalty in case of unavoidable cause.

A.D. 1904. was caused by circumstances beyond the control of the Company or was of so slight or unimportant a character as not materially to affect the value of the supply. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Company
may contract
with local
authority &c.
for supply
in bulk.

69. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon. Provided that the Company shall not supply gas in pursuance of this section if and so long as such supply would interfere with the supply of gas within the Company's limits of supply.

MISCELLANEOUS.

For protec-
tion of Great
Western
Railway
Company.

70. For the protection of the Great Western Railway Company (herein-after referred to as "the Great Western Company") the following provisions shall apply :—

(A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall except in cases of emergency be done under the superintendence if after reasonable notice such superintendence be given and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing :

(B) All such works shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to the reasonable

satisfaction of the said engineer the roads over any bridge or level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company. Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company :

- (c) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :
- (d) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the Company shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided :
- (e) If the Great Western Company at any time or times hereafter require (of which they shall be the sole judges) to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Western Company may on giving to the Company fourteen days notice in writing under the hand of their secretary or general manager and in case of emergency without notice divert support or carry the said works of the Company across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and

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doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works :

- (F) Except as in this section otherwise provided any dispute or difference which may arise between the Great Western Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Company or either of them.

Provision
of map of
mains.

71. The Company shall mark upon a map of their limits of supply to be provided by the council the position so far as may be known of all mains belonging to the Company situate in any street whether dedicated to the public use or not within the urban district of Brixham and shall also once in every year at the request of the council give to them full information as to the position of all mains of the Company laid down in the preceding year.

Dwelling-
houses for
persons in
Company's
employ.

72. The Company may erect and maintain dwelling-houses for persons in their employ upon the lands for the time being belonging or leased to the Company.

Power to
take licences
for use of
patents.

73. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of gas the production of coke tar pitch asphaltum ammoniacal oil and the products from coal and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto but not so as to acquire any exclusive right to the working use exercising or putting in practice of any such invention.

Recovery of
demands un-
der one hun-
dred pounds.

74. Proceedings for the recovery of any demand not exceeding one hundred pounds made under the authority of this Act whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

Costs of Act.

75. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

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GAS LANDS.

Lands situate in the parish and urban district of Brixham in the county of Devon about 180 feet long by about 96 feet wide containing 1,900 square yards or thereabouts and bounded as follows :—

On the south-easterly side by premises in Fore Street belonging to and occupied by the Brixham Gas and Coke Company (or their assigns) and now used as the gas offices by premises in that street belonging to or occupied by J. C. Southern and by H. P. Elliott respectively and by premises in that street known as the Mission Rooms :

On the north-easterly side by Gas Lane Ram Alley Paradise Alley the most south-westerly houses in Ram Alley and Paradise Alley the premises belonging to or occupied by Mr. A. Kendrick Mill Tye and the premises belonging to or occupied by Mrs. E. Westcott :

On the north-westerly side by the premises in Middle Street belonging to Miss Pepperell Mrs. E. Wheaton Mr. George Holmes Mr. G. Puckett and Mr. H. B. Blacker respectively :

On the south-westerly side by premises belonging to Miss Pepperell Mrs. Furneaux Mr. A. Kendrick Miss Baddeley Miss S. Browse and Mr. J. C. Southern respectively.

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